



INDIAN POLITY

SUPREME COURT (PART 1)

MODULE – 74



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CASE OF USA

In USA, on the other hand, the federal laws are enforced by the federal judiciary and the state laws are enforced by the state judiciary



SC-Articles 124 to 147 in Part V of the Constitution

INTRODUCTION

- 1 Unlike the American Constitution, the Indian Constitution has established an integrated judicial system with the Supreme Court at the top and the high courts below it.
- 2 Under a high court (and below the state level), there is a hierarchy of subordinate courts, that is, district courts and other lower courts.
- 3 This single system of courts, adopted from the Government of India Act of 1935, enforces both Central laws as well as the state laws.

ORGANISATION OF SUPREME COURT



- 1** At present, the Supreme Court consists of thirty-one judges (one chief justice and thirty other judges)
- 2** Parliament has got authority to change the number of judges.



APPOINTMENT OF JUDGES



- The judges of the Supreme Court are appointed by the president.
- The chief justice is appointed by the president after consultation with such judges of the Supreme Court and high courts as he deems necessary.
- The other judges are appointed by president after consultation with the chief justice and such other judges of the Supreme Court and the high courts as he deems necessary.
- The consultation with the chief justice is obligatory in the case of appointment of a judge other than Chief justice.

THE COLLEGIUM AND TRANSPARENCY

Collegium System - Collegium System is the system of appointment and transfer of judges that has evolved through Constitutional interpretation of Supreme Court rather than any act made by Parliament.

EVOLUTION OF COLLEGIUM SYSTEM



The Collegium system has its genesis in a series of judgments called “Judges Cases”.

- **First Judges Case, 1981-** The Constitution Bench also held that the term “consultation” used in Articles 124 and 217 was not “concurrence”.
- **Second Judges Case, 1993** - The recommendation should be made by the CJI in consultation with his two senior most colleagues, and that such recommendation should normally be given effect to by the executive.
- **Third Judges Case, 1998-** The SC laid down that the recommendation should be made by the CJI and his four senior most colleagues, instead of two.

“CONSULTATION OF PLURALITY JUDGES”



- 1 In the Third Judges case (1998), the Court opined that the consultation process to be adopted by the Chief justice of India requires ‘consultation of plurality judges’.

- 2 The sole opinion of the chief justice of India does not constitute the consultation process.

- 3 He should consult a collegium of four senior most judges of the Supreme Court and even if two judges give an adverse opinion, he should not send the recommendation to the government.

- 4 The court held that the recommendation made by the chief justice of India without complying with the norms and requirements of the consultation process are not binding on the government.

NEW DEVELOPMENT IN APPOINTMENT OF HIGHER JUDICIARY



National Judicial Appointments Commission



- 1 The government got the “National Judicial Appointments Commission” (NJAC) Act - 2014, passed as the 99th Constitutional Amendment Act.
- 2 This is to establish a body with representation from the higher judiciary, the government, and civil society to replace the Collegium system.

Supreme Court pronounced it null and void and the appointments of Judges in Higher Judiciary are done by Collegium System currently.

DIFFERENCES BETWEEN THE TWO SYSTEMS

COLLEGIUM SYSTEM	NJAC SYSTEM
ORIGINAL PROVISION: Under Article 124(2) and Article 217(1) of the Constitution, SC/HC judges have to be appointed by the President after “consultation” with the CJI. Government was not bound by its recommendation.	CONSTITUTIONAL AMENDMENT: NJAC was established by the Constitution (99th Amendment) Act, 2014, giving some say to executive in judges appointment.
JUDICIAL TAKEOVER: In 1993, SC introduced the collegium system taking over primacy in appointments of SC&HC judges.	NJAC ACT: Parliament also passed the National Judicial Appointments Commission Act, 2014 to regulate procedure to be followed by NJAC to replace collegium system.



DIFFERENCES BETWEEN THE TWO SYSTEMS

COLLEGIUM SYSTEM	NJAC SYSTEM
COMPOSITION: Under the collegium system, a panel of top five SC judges appointed judges in secrecy.	COMPOSITION: CJI, 2 seniormost SC judge, Union law minister, and two eminent persons.
VETO POWER: Government could return collegium's recommendation. But if a recommendation was sent again, government was bound by it.	VETO POWER: NJAC not to recommend person if members did not agree in majority opinion.



NEW DEVELOPMENT IN APPOINTMENT OF HIGHER JUDICIARY

WORKING OF COLLEGIUM SYSTEM

- 1 The Supreme Court collegium is headed by the Chief Justice of India and comprises four other senior most judges of the court.
- 2 Judges of the higher judiciary are appointed only through the collegium system — and the *government has a role only after names have been decided by the collegium.*
- 3 Government can also raise objections and seek reconsideration regarding the collegium's choices.
- 4 But if the *collegium reiterates* the same names, the *government is bound*, under Constitution Bench judgments, to appoint them as judges.

NEW DEVELOPMENT IN APPOINTMENT OF HIGHER JUDICIARY

WORKING OF COLLEGIUM SYSTEM

VIEWS AGAINST COLLEGIUM SYSTEM

- Collegium system was not proposed by Indian Constitution
- A closed-door affair without a formal and transparent system



VIEWS IN FAVOUR OF COLLEGIUM SYSTEM

- A way to make judiciary independent of politics
- Abide by the principles of separation of powers in the Constitution



QUALIFICATIONS OF JUDGES

A person to be appointed as a judge of the Supreme Court should have the following qualifications:

- 1 He should be a citizen of India.



- 2
 - He should have been a judge of a High Court (or high courts in succession) for five years;
 - (or)
 - He should have been an advocate of a High Court (or high Courts in succession) for ten years.
 - (or)
 - He should be a distinguished jurist in the opinion of the president.

OATH (Or) AFFIRMATION**1**

To bear true faith and allegiance to the Constitution of India;

2

To uphold the sovereignty and integrity of India.

3

To duly and faithfully and to the best of his ability, knowledge and judgment perform the duties of the Office without fear or favor, affection or ill-will.

4

To uphold the Constitution and the laws.

TENURE OF JUDGES

The Constitution has not fixed the tenure of a judge of the Supreme Court. However, it makes the following three provisions in this regard:

1. He holds office until he attains the age of 65 years. Any question regarding his age is to be determined by such authority and in such manner as provided by Parliament.
2. He can resign his office by writing to the president.
3. He can be removed from his office by the President on the recommendation of the Parliament.

SUPREME COURT

REMOVAL OF JUDGES

1

A judge of the Supreme Court can be removed from his Office by an order of the president.



2

The President can issue the removal order only after an address by Parliament has been presented to him in the same session for such removal.

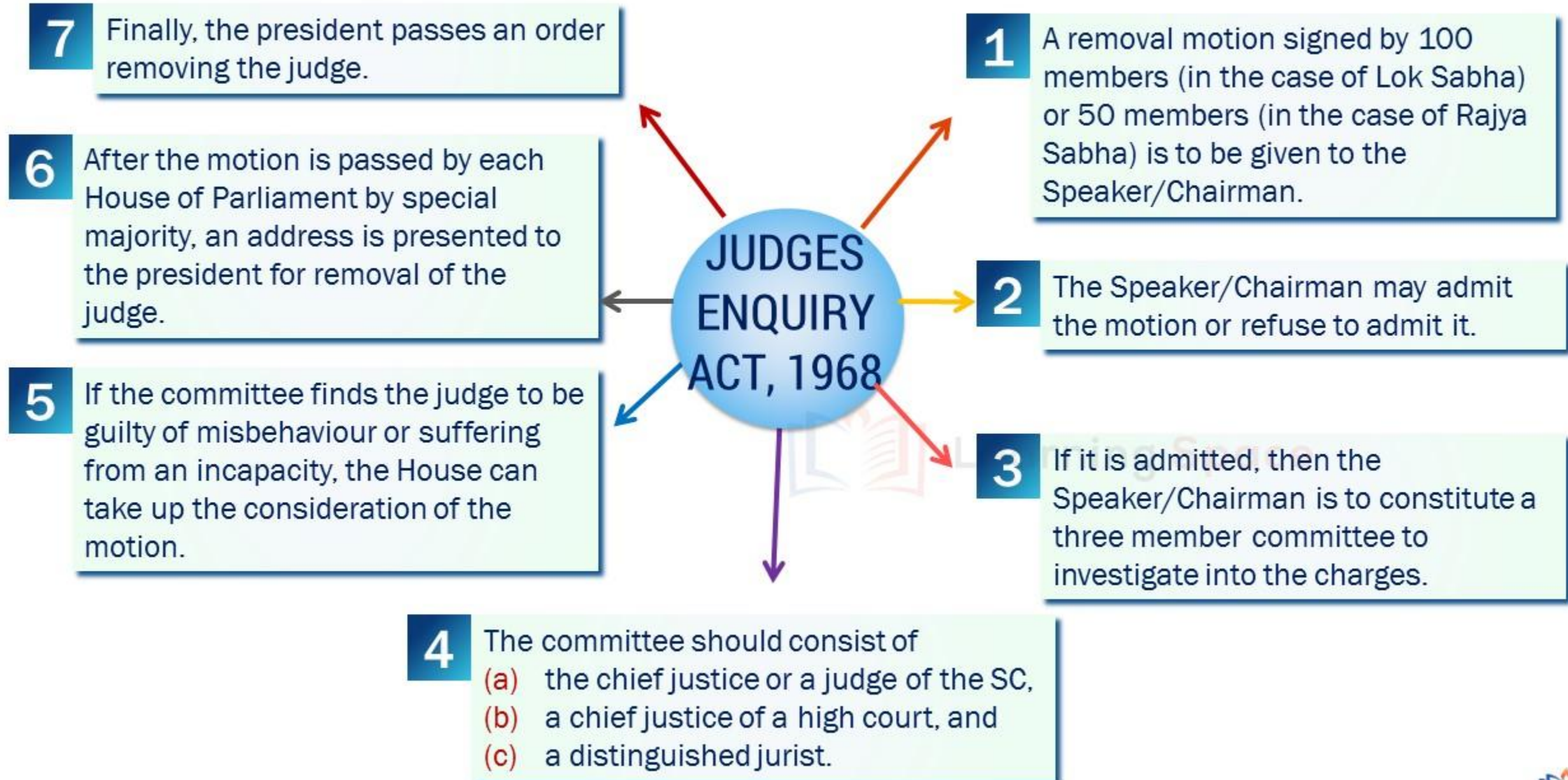
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The address must be supported by a special majority of each House of Parliament (ie, a majority of the total membership of that House and a majority of not less than two-thirds of the members of that House present and voting).

4

The grounds of removal are two—proved misbehaviour or incapacity.

POINTS TO PONDER !



CURRENT AFFAIRS: MASTER OF THE ROSTER

**P.B.SAWANT**

Former Judge, Supreme Court



SUPREME COURT- A COURT OF EQUALS

- The Chief Justice of India is only one among the equals, with the power to judiciously exercise an important role of constituting benches.
- This cannot be used in an Autocratic Manner.
- The principles should be neutrality, impartiality and transparency.
- Case allotment should be rule-based and falls within the boundaries of objective criteria and with limited scope for discretion.

Indisciplined exercise of this authority can lead to a complete subversion of Democracy.

CURRENT AFFAIRS: MASTER OF THE ROSTER



HOW THE WORK IS TO BE ALLOCATED?

- 1 A just and fair roster must be that is the one divided subject-wise among the Judges according to their experience in those subjects.
- 2 Politically sensitive matters should be before the five senior judges of the Supreme Court.
- 3 Among them, the allocation of individual cases must be by random computer allocation, not by the individual decision of any human.

CURRENT AFFAIRS: MASTER OF THE ROSTER

SUPREME COURT'S VIEWS ON THIS!



“The 'Chief Justice of India' (CJI) is an individual judge and not the powerful collective of five senior-most judges of the Supreme Court called the ‘Collegium’”: SC



“Unlike the Collegium to recommend new judges, a collegium to allocate cases would mean judges deciding for themselves which cases they should hear”: SC

CURRENT AFFAIRS: MASTER OF THE ROSTER

WHAT WAS THE RECENT ISSUE?



JUSTICE DIPAK MISRA

This will lead to further speculation and has become a stronger ground for criticism of the prevailing practice at the Supreme Court.

- 1** The roster aggregates all important cases to the Chief Justice of India. They include...
 - Politically sensitive cases
 - All fresh public interest litigations
 - Social justice matters
 - Contempt of court cases
 - Matters dealing with appointment of constitutional functionaries
- 2** Mundane cases with little political significance are assigned to the other senior judges.
- 3** The CJI went on to exclude them from the range of certain important Constitution Bench hearings.

SUPREME COURT

OTHER APPOINTMENTS THAT CAN BE MADE IN SUPREME COURT

SALARIES & ALLOWANCES

The salaries, allowances, privileges, leave and pension of the judges of the Supreme Court are determined from time to time by the Parliament.

ACTING CHIEF JUSTICE

The President can appoint a judge of the Supreme Court as an acting Chief Justice of India when:

1. the office of Chief Justice of India is vacant; or
2. the Chief Justice of India is temporarily absent; or
3. the Chief Justice of India is unable to perform the duties of his office.

OTHER APPOINTMENTS THAT CAN
BE MADE IN SUPREME COURT

AD HOC JUDGE

- When there is a lack of quorum of the permanent judges to hold or continue any session of the Supreme Court, the Chief Justice of India can appoint a judge of a High Court as an ad hoc judge of the Supreme Court for a temporary period.
- He can do so **only after consultation with the chief justice of the High Court concerned and with the previous consent of the president.**
- The judge so appointed should be qualified for appointment as a judge of the Supreme Court.

RETIRED JUDGES

- At any time, the chief justice of India can request a retired judge of the Supreme Court or a retired judge of a high court (who is duly qualified for appointment as a judge of the Supreme Court) to act as a judge of the Supreme Court for a temporary period.
- He **can do so only with the previous consent of the president and also of the person to be so appointed.**
- Such a judge is entitled to such allowances as the president may determine.
- He will also enjoy all the jurisdiction, powers and privileges of a judge of Supreme Court.
- But, he will not otherwise be deemed to be a judge of the Supreme Court

SEAT OF SUPREME COURT

- The Constitution declares Delhi as the seat of the Supreme Court.
- But, it also authorizes the chief justice of India to appoint other place or places as seat of the Supreme Court.
- He can take decision in this regard only with the approval of the President.

PROCEDURE OF THE COURT

- The SC can, with the approval of the president, make rules for regulating generally the practice and procedure of the Court.
- The Constitutional cases or references made by the President under Article 143 are decided by a Bench consisting of at least five judges.
- All other cases are usually decided by a bench consisting of not less than 3 judges.

INDEPENDENCE OF SUPREME COURT

The Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of the Supreme Court:

- 1 *Mode of appointment*
- 2 *Security of Tenure*
- 3 *Fixed Service Conditions*
- 4 *Expenses Charged on Consolidated Fund*
- 5 *Conduct of Judges cannot be Discussed*

- 6 *Ban on Practice after Retirement*
- 7 *Power to Punish for its Contempt*
- 8 *Freedom to Appoint its Staff*
- 9 *Its Jurisdiction cannot be Curtailed*
- 10 *Separation from Executive*

SUPREME COURT

SUMMARY OF LECTURE

- Organisation of Supreme Court
- Appointment of Judges
- Evolution of Collegium System
- Collegium vs NJAC
- Qualifications of Judges
- Tenure of Judges
- Oath of Judges
- Removal of Judges
- Judges Enquiry Act
- Master of Roster issue
- Other appointments in SC
- Independence of Judges

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